

Complaint Report (CCRB)

CCRB Case No :	201904481	C/V Report Date :	Thu, 05/16/2019
Complaint Type :	CCRB	Investigator :	Miriam Lynch
Complaint Made At :	IAB	Ref. No	19-19606
Received Date (CCRB) :	Thu, 05/23/2019 11:10 AM	Mode :	Phone
Incident Date(s) :	Wednesday, 05/15/2019 9:40 PM		
Place of Occurrence:	[REDACTED]	Precinct:	48
Location :	Street/highway	Boro:	Bronx
Reason for Initial Contact :	Moving violation		
Charges:	Arrest - other violation/crime		

Complainant/Victim Details

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
POF	Merita Hoxha	Subject Officer	955988	White	042	Physical force - (punched/kicked/kneed) - (F) Complainant Uncooperative
POM	Dennis Vargas	Subject Officer	957245	Hispanic	042	Physical force - (punched/kicked/kneed) - (F) Complainant Uncooperative
SGT	Joseph Duerr	Subject Officer	953830	White	042	Physical force - (punched/kicked/kneed) - (F) Complainant Uncooperative
POM	Angel Perez	Subject Officer	956159	Hispanic	042	Physical force - (punched/kicked/kneed) - (F) Complainant Uncooperative
LT	Yoel Hidalgo	Subject Officer	944080	Hispanic	042	Physical force - (punched/kicked/kneed) - (F) Complainant Uncooperative
	Officers	Subject Officer			042	Vehicle search - (A) Complainant Uncooperative
	Officers	Subject Officer			042	Forcible Removal to Hospital - (A) Complainant Uncooperative

Initial Complaint Narrative

On May 16, 2019, this complaint was filed on behalf of prisoner § 87(2)(b) by Captain Justin Lee of the 46th Precinct. IAB Log number 2019-19056 was generated as a result. On May 24, 2019, the CCRB received this complaint under IAB Log number 2019-19606Police Officer Perez, Tax # 956159 observed a vehicle proceed through a red light, which he pulled over. After a preliminary investigation it was discovered that there was a firearm inside of the vehicle. § 87(2)(b) (DOB: 01/28/1984) was placed under arrest, but resisted the officers as they were trying to place him in handcuffs. Once § 87(2)(b) was handcuffed, he was placed in an RMP, where he started to make threats, and saying that he was going to head-butt the officers and that he was going to kick the windows out of the RMP. § 87(2)(b) managed to maneuver his arms in order to place his handcuffed hands in front of his body, and was attempting to kick the windows out of the vehicle, which resulted in the officers transferring him to a van for safety. While § 87(2)(b) was in the van, he made statements such as "you punched me, you kicked me." Upon arriving at the Precinct, § 87(2)(b) urinated inside of the cells and was then removed to the § 87(2)(b) Emergency Room for a psychological evaluation. Captain Lee was not able to interview § 87(2)(b). The doctor who treated § 87(2)(b) was Dr. § 87(2)(b) and the diagnosis was pending as of the time of his first call. Captain Lee stated that the Officers involved are PO Hoxha, Tax # 955988, PO Vargas, Tax # 957245, PO Perez, 956159, SGT Duerr, Tax # 953830, and LT Hidalgo, Tax # 944080. ICMS Query revealed no prior logs related to this incident. AUDIO Uploaded to log as attachment. OMNIFORM Query revealed UF 61 # § 87(2)(b) Attached to log as Incident Documents. FORMS Query revealed TRI #'s § 87(2)(b) Uploaded to log as attachments. BODYCAM query for SGT Duerr revealed the Officers attempting to handcuff the defendant but he continues to resist and threatens to headbutt Police Officer Vargas. The defendant then states that he is going to kick out the rear windows of the RMP that he is being placed in. The defendant manages to get his hands to the front of his body and starts to bang the handcuffs against the RMP door window, followed by kicks to the RMP door window. The Officers pull him out of the RMP where he continues to resist, and they place him in a van. I did not observe any Officers punch or kick the defendant in the video. 0153 hours, I conferred with SGT Massey, IAB C/C desk. 0249 hours, I received the ISAR from Captain Lee which stated that based on the information at the time of his report he determined that the subject Officers acted within Department guidelines. Body camera footage failed to reveal the Officers punching or kicking the defendant. Captain Lee stated that the Officers used the minimum amount of force to prevent escape and/or injury. Captain Lee recommends that this investigation be closed.

Witness
